

Government of India  
Ministry of Personnel, Public Grievances and Pensions  
(Department of Personnel and Training)

IR Division

\*\*\*\*\*

**Subject: - Appointment of Information Commissioners in the Central Information Commission**

This is regarding appointment of Information Commissioners in the Central Information Commission. Vide advertisement dated 09.07.2020, appointment of 3 Information Commissioners and 1 Chief Information Commissioner were made on 07.11.2020. About 1 year is about to elapse since last appointment. As on date 3 posts of Information Commissioners in CIC are vacant. Hon'ble Supreme Court's in its order in WP No.436 of 2018 dated 15.02.2019, directed to fill up vacancies, in future, without any delay; and that for this purpose, the process for filling up of a particular vacancy is initiated 1 to 2 months before the date on which the vacancy is likely to occur so that there is not much time lag between the occurrence of vacancy and filling up of the said vacancy. Incumbency Statement of Chief Information Commissioner and Information Commissioners is placed at **Flag 'A'**.

**Rule Position**

2. As per section 12 (2) of the Act, the Central Information Commission shall consist of the Chief Information Commissioner and such number of Central Information Commissioners, **not exceeding ten**, as may be deemed necessary.

3. Section 12 (3) of the Act stipulates that - *The Chief Information Commissioner and the Information Commissioners shall be appointed by the President on the recommendation of a Committee consisting of the following:-*

- (i) *the Prime Minister who shall be the Chairman of the Committee,*
- (ii) *the Leader of the Opposition in the Lok Sabha, and*
- (iii) *a Union Cabinet Minister to be nominated by the Prime Minister.*

The Act further explains that for the purpose of removal of doubts, it is hereby declared that where the Leader of the Opposition in the House of the People has not been recognized as such, the Leader of the single largest group in opposition of the Government in the House of the People shall be deemed to be the Leader of Opposition.

4. As per Section 12(5) of the RTI Act, *The Chief Information Commissioner and Information Commissioners shall be persons of eminence in public life with wide knowledge and experience in law, science and technology, social service, management, journalism, mass media or administration and governance.*

→

**From prepage**

5. Section 12(6) of the RTI Act, 2005 mandates that "The Chief Information Commissioner or an Information Commissioner shall not be a Member of Parliament or Member of the Legislature of any State or Union territory, as the case may be, or hold any other office of profit or connected with any political party or carrying on any business or pursuing any profession."

**Process**

7. As per past practice, the process of selection of Information Commissioners involves following steps:-

- (i) Particulars of interested persons are invited through advertisements in newspapers (two English and two Hindi) and through DoPT's Website. A copy of last advertisement issued is at **Flag 'B'**.
- (ii) Particulars of applicants are tabulated by DoPT and sent to a Search Committee (constituted by PM) chaired by Cabinet Secretary.
- (iii) Shortlisted names are sent to a Committee constituted under Section 12(3) headed by the Hon'ble Prime Minister.
- (iv) Persons recommended by the Committee under Section 12(3) are appointed by the Hon'ble President.

8. Hon'ble Supreme Court in its Judgement dated 15.02.2019 in WP No.436 of 2018: Ms Anjali Bhardwaj & others Vs. Union of India and others pertaining to fill up the vacancies in CIC, has disposed of the WP, inter-alia holding that-

- (i) The procedure is now adequately transparent, one cannot find fault in the process of appointment;
- (ii) There have been undue delay in filling up these vacancies; and that vacancies shall be filled up, in future well in time.
- (iii) The terms and conditions on which such appointments are to be made, be specifically stipulated in the advertisement and put on the website as well;
- (iv) The Search Committee ought to make criteria for shortlisting the candidates so that it is ensured that shortlisting is done on the basis of objective and rational criteria;
- (v) Information Commissioners are appointed from other streams/categories as well;
- (vi) Vacancies be filled up in future without any delay by initiating the process for filling up the vacancies one or two months before.

From prepage

9. In the above mentioned case, the petitioners have again approached the Hon'ble Supreme Court and filed **MA No. 1979/2019** in WP(C) No. 436/2018 wherein the Hon'ble Supreme Court, in its order dated 07.07.2021 directed Union of India and all the other respondent (States) ~~are~~ ~~directed~~ to file the latest status and compliance report. The matter is to be listed on **11th August, 2021**. In compliance of the above direction dated 07.07.2021, a latest status & compliance Affidavit dated 10.08.2021 has been e-filed on 10.08.2021.

10. In view of the vacancies mentioned in para 1, file is submitted for further course of action/ direction. *please*.

Submitted please.

*Manoj* 10/8/21  
(Manoj Kumar)  
ASO (IR-II)

*SO* (IR-II)

*US* (IR-II)

*Dir* (IR)

*ASCRE*

*Bireah*  
10/8/21

*Pawankumar*  
11/08/21

*Vsinh*  
11/08/21

*Pl bring out the number of vacancies clearly, in the noting. Pl indicate if the file needs to go Cabinet Secy for a direction - link the file of the last appointment process [or notings where ~~the~~ file was marked to Cabinet Secy J.*

*Leo*  
12/8/2021

*Dir* (IR)

*USCIR-2)*

*So* (IR-2)

*Pawankumar*  
12/8/21

*Vsinh*  
12/8/21

Government of India  
Ministry of Personnel, Public Grievances and Pensions  
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**Subject: - Appointment of Information Commissioners in the Central Information Commission**

**Ref. notes at pg 1-3/n and observations of AS (RC) at prepage.**

2. This is regarding appointment of Information Commissioners in the Central Information Commission. Vide advertisement circular dated 09.07.2020, appointment of 3 Information Commissioners and 1 Chief Information Commissioner were made on 07.11.2020. About 1 year is about to elapse since last appointment. At present there are seven Information Commissioners apart from the Chief Information Commissioner in position in CIC. Incumbency Statement of Chief Information Commissioner and Information Commissioners in CIC is placed at **Flag 'A'**. Hon'ble Supreme Court in its order in WP No.436 of 2018 dated 15.02.2019, directed to fill up vacancies, in future, without any delay; and that for this purpose, the process for filling up of a particular vacancy is initiated 1 to 2 months before the date on which the vacancy is likely to occur so that there is not much time lag between the occurrence of vacancy and filling up of the said vacancy.

**Rule Position**

3. As per section 12 (2) of the Act, the Central Information Commission shall consist of the Chief Information Commissioner and such number of Central Information Commissioners, **not exceeding ten**, as may be deemed necessary.

4. Section 12 (3) of the Act stipulates that - *The Chief Information Commissioner and the Information Commissioners shall be appointed by the President on the recommendation of a Committee consisting of the following:-*

- (i) the Prime Minister who shall be the Chairman of the Committee,
- (ii) the Leader of the Opposition in the Lok Sabha, and
- (iii) a Union Cabinet Minister to be nominated by the Prime Minister.

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**From prepage**

The Act further explains that for the purpose of removal of doubts, it is hereby declared that where the Leader of the Opposition in the House of the People has not been recognized as such, the Leader of the single largest group in opposition of the Government in the House of the People shall be deemed to be the Leader of Opposition.

5. As per Section 12(5) of the RTI Act, *The Chief Information Commissioner and Information Commissioners shall be persons of eminence in public life with wide knowledge and experience in law, science and technology, social service, management, journalism, mass media or administration and governance.*

6. Section 12(6) of the RTI Act, 2005 mandates that *"The Chief Information Commissioner or an Information Commissioner shall not be a Member of Parliament or Member of the Legislature of any State or Union territory, as the case may be, or hold any other office of profit or connected with any political party or carrying on any business or pursuing any profession."*

**Process**

7. As per past practice, the process of selection of Information Commissioners involves following steps:-

- (i) Particulars of interested persons are invited through advertisements in newspapers (two English and two Hindi) and through DoPT's Website.
- (ii) Particulars of applicants are tabulated by DoPT and sent to a Search Committee (constituted by PM) chaired by Cabinet Secretary.
- (iii) Shortlisted names are sent to a Committee constituted under Section 12(3) headed by the Hon'ble Prime Minister.
- (iv) Persons recommended by the Committee under Section 12(3) are appointed by the Hon'ble President.

8. Hon'ble Supreme Court in its Judgement dated 15.02.2019 in WP No.436 of 2018: Ms Anjali Bhardwaj & others Vs. Union of India and others pertaining to fill up the vacancies in CIC, has disposed of the WP, inter-alia holding that-

From prepage

- I. The procedure is now adequately transparent, one cannot find fault in the process of appointment;
  - II. There have been undue delay in filling up these vacancies; and that vacancies shall be filled up, in future well in time.
  - III. The terms and conditions on which such appointments are to be made, be specifically stipulated in the advertisement and put on the website as well;
  - IV. The Search Committee ought to make criteria for shortlisting the candidates so that it is ensured that shortlisting is done on the basis of objective and rational criteria;
  - V. Information Commissioners are appointed from other streams/categories as well;
  - VI. Vacancies be filled up in future without any delay by initiating the process for filling up the vacancies one or two months before.
9. In the above mentioned case, the petitioners have again approached the Hon'ble Supreme Court through **MA No. 1979/2019** in WP(C) No. 436/2018 wherein the Hon'ble Supreme Court in its order dated 07.07.2021 directed Union of India and all the other respondent (States) to file the latest status and compliance report. In compliance of the above direction dated 07.07.2021, a latest status & compliance Affidavit dated 10.08.2021 has been e-filed on 10.08.2021. The matter is tentatively listed for hearing on **18.08.2021**.
10. As on date **3 posts** of Information Commissioners in CIC are **vacant**.
11. As per the procedure adopted on previous instances of appointments of Information Commissioners in CIC, the file is moved for obtaining the approval of Hon'ble Prime Minister to start appointment process as well as for constitution of Search Committee for shortlisting of candidates and nominating of one Union Cabinet Minister for the Selection Committee under Section 12(3) of RTI Act.
12. Subsequent to the approval of the Hon'ble PM for the above, the Advertisement Circular is issued and after tabulation of particulars of all applications received by the due date, file is moved to Cabinet

✓ 3-5/Corr  
rev. app. file  
file pending

→

fpp

Contd...

-: 7 :-

F.No: 4/5/2021-IR II  
[C.No. 3159776]

From prepage

Secretariat seeking convenience of the Cabinet Secretary as Chairman of Search Committee to convene a meeting for shortlisting of the candidates.

X copy of  
and file  
at 1-6-8/21

13. In view of the above, file is submitted for further direction in the matter.

Manoj Kumar  
17/8/21  
(Manoj Kumar)  
ASO (IR-II)

SO (IR-II)

CS (IR-II)

Dir (IR)

Birendra  
17/8/21

Pawan Kumar  
17/8/21

ASCRG)

Secy (CP)

18/8/21

V Sankar  
18/8/21

pl. disc.

Chandra  
18/8/21

AS (RC)

P1 speak

Dir (IR)  
23/8

Spoken

P1 discuss

USGR-2 V Sankar  
27/8/21  
P1 discuss  
P1 may not  
P1 may not  
3/9/21  
SO (IR-3)  
10/9/21

Government of India  
Ministry of Personnel, Public Grievances and Pensions  
Department of Personnel and Training  
(IR Division)

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**Subject:- Appointment of Information Commissioners in the Central Information Commission**

This is regarding appointment of Information Commissioners in the Central Information Commission. In pursuance of Advertisement Circular dated 09.07.2020, appointment of 3 Information Commissioners and 1 Chief Information Commissioner was made on 07.11.2020. More than 1 and 1/2 year has elapsed since last appointment. At present there are seven Information Commissioners apart from the Chief Information Commissioner in position in CIC. Incumbency Statement of Chief Information Commissioner and Information Commissioners in CIC is placed at **Flag 'A'**. Hon'ble Supreme Court in its order in WP No.436 of 2018 dated 15.02.2019, directed to fill up vacancies, in future, without any delay; and that for this purpose, the process for filling up of a particular vacancy is initiated 1 to 2 months before the date on which the vacancy is likely to occur so that there is not much time lag between the occurrence of vacancy and filling up of the said vacancy.

**Rule Position**

2. As per section 12 (2) of the Act, the Central Information Commission shall consist of the Chief Information Commissioner and such number of Central Information Commissioners, **not exceeding ten**, as may be deemed necessary.

3. Section 12 (3) of the Act provides that *the Chief Information Commissioner and the Information Commissioners shall be appointed by the President on the recommendation of a Committee consisting of the following:-*

- (i) the Prime Minister who shall be the Chairman of the Committee,
- (ii) the Leader of the Opposition in the Lok Sabha, and
- (iii) a Union Cabinet Minister to be nominated by the Prime Minister.

The Act further explains that for the purpose of removal of doubts, it is hereby declared that where the Leader of the Opposition in the House of the People has not been recognized as such, the Leader of the single largest group in opposition of the Government in the House of the People shall be deemed to be the Leader of Opposition.

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5. Section 12(6) of the RTI Act, 2005 mandates that "The Chief Information Commissioner or an Information Commissioner shall not be a Member of Parliament or Member of the Legislature of any State or Union territory, as the case may be, or hold any other office of profit or connected with any political party or carrying on any business or pursuing any profession."

### Process

6. As per past practice, the process of selection of Information Commissioners involves following steps:-

- (i) Particulars of interested persons are invited through advertisements in newspapers (two English and two Hindi) and through DoPT's Website.
- (ii) Particulars of applicants are tabulated by DoPT and sent to a Search Committee (constituted by PM) chaired by Cabinet Secretary for shortlisting.
- (iii) All the applications alongwith shortlisted names are sent to a Committee, constituted under Section 12(3) of the RTI Act, headed by the Hon'ble Prime Minister.
- (iv) Persons recommended by the Committee under Section 12(3) are appointed by the Hon'ble President.

7. Hon'ble Supreme Court in its Judgement dated 15.02.2019 in WP No.436 of 2018: Ms Anjali Bhardwaj & others Vs. Union of India and others pertaining to filling up the vacancies in CIC, has disposed of the WP, inter-alia holding that-

- I. The procedure is now adequately transparent, one cannot find fault in the process of appointment;
- II. There have been undue delay in filing up these vacancies; and that vacancies shall be filled up, in future well in time.
- III. The terms and conditions on which such appointments are to be made, be specifically stipulated in the advertisement and put on the website as well;
- IV. The Search Committee ought to make criteria for shortlisting the candidates public so that it is ensured that shortlisting is done on the basis of objective and rational criteria;

f.p.p.

-10-

F.No. 415/2021-IR II

V. Information Commissioners are appointed from other streams/categories as well;

VI. Vacancies be filled up in future without any delay by initiating the process for filling up the vacancies one or two months before.

8. In the above-mentioned case, the petitioners have again approached the Hon'ble Supreme Court through **MA No. 1979/2019** in WP(C) No. 436/2018 wherein the Hon'ble Supreme Court in its order dated 07.07.2021 directed Union of India and all the other respondent (States) to file the latest status and compliance report. In compliance of the above direction dated 07.07.2021, the latest status & compliance Affidavit dated 10.08.2021 was e-filed on 10.08.2021. The matter is tentatively listed for hearing on **06.09.2022**.

9. As on date **3 posts** of Information Commissioners in CIC are **vacant**. Further, **3 more posts** of Information Commissioner **would be vacant in first half of the year 2023** (1 each in March, April and June) on **completion of tenure** of the present incumbent ICs.

10. As per the procedure adopted on previous instances of appointment of Information Commissioners in CIC, the file is moved for obtaining the approval of Hon'ble Prime Minister to start appointment process as well as for constitution of Search Committee for shortlisting of candidates and nominating one Union Cabinet Minister for the Selection Committee under Section 12(3) of RTI Act.

11. Subsequent to the approval of the Hon'ble PM for the above, the Advertisement Circular is issued and after tabulation of particulars of all applications received by the due date, file is moved to Cabinet Secretariat seeking convenience of Cabinet Secretary as Chairman of Search Committee to convene a meeting for shortlisting of the candidates.

12. In view of the above, file is submitted for further direction in the matter.

Bikesh

(Bikesh Kr. Barnawal)

SO (IR-II)/Dated 28.07.2022

Pawan Kumar  
28/07/22V. Sinha  
28/7/22US (IR-II)JS (IR)AS (RC)Secy (CP)AS (RC)we may initiate the process  
by preparing a note for  
PMO

11/8/2022

P1. Shankar

@ p-3-5/comm

Spoken.  
Send for now  
R  
11/8/22JS/IR  
11/8/22Pawan  
11/8/22  
SO (IR-2)

Department of Personnel and Training  
(IR Division)

\*\*\*\*\*

**Subject:- Appointment of Information Commissioners in the Central Information Commission**

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2. It is relevant to mention that the Hon'ble Supreme Court in its Order dated 15.02.2019 in WP (C) No.436 of 2018, directed to fill up vacancies, in future, without any delay; and that for this purpose, the process for filling up of a particular vacancy is initiated 1 to 2 months before the date on which the vacancy is likely to occur so that there is not much time lag between the occurrence of vacancy and filling up of the said vacancy.

**Rule Position**

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the latest status & compliance Affidavit dated 10.08.2021 was e-filed on 10.08.2021. The matter is tentatively listed for hearing on **30.11.2022**.

9. As on date **3 posts** of Information Commissioners in CIC are **vacant**. Further, **3 more posts** of Information Commissioner **would be vacant** in **first half of the year 2023** (1 each in March, April and June) on account of the **completion of tenure** of the present incumbent ICs.

10. As per the procedure adopted on previous instances of appointment of Information Commissioners in CIC, the file is moved for obtaining the approval of Hon'ble Prime Minister to start appointment process as well as for constitution of Search Committee for shortlisting of candidates and nominating one Union Cabinet Minister for the Selection Committee under Section 12(3) of RTI Act.

11. Subsequent to the approval of the Hon'ble PM for the above, the Advertisement Circular is issued and after tabulation of particulars of all applications received by the due date, file is moved to Cabinet Secretariat seeking convenience of Cabinet Secretary as Chairman of Search Committee to convene a meeting for shortlisting of the candidates.

12. In view of the above, file is submitted for kind consideration and appropriate direction in the matter.

Index  
(Inder Pal, ASO IR-II)

Dated 11.11.2022

SO (IR-II)

US (IR-II)

JS (IR)

We may initiate the process of appointment of Information Commissioners in the Central Inf. Comm.

AS (RC)

He may initiate the process by preparing a note for the Hon'ble PM

LS

(Rashmi Chowdhary)  
Additional Secretary

V. S. S. S.  
11/11/22

Pawan Kumar  
11/11/22

Disussed.  
Pe put up  
for appropriate  
affidavit  
R  
5/12/2022

Secy (P)

US/IR

Government of India  
Ministry of Personnel, Public Grievances and Pensions  
(Department of Personnel and Training)  
IR Division  
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✓ at PP-37-38  
Cor

PP-66-67, 85-87  
Cor

\* at PP 89-122  
Cor

From pre-page---

9. As on date 3 posts of Information Commissioners in CIC are vacant. Further, 3 more posts of Information Commissioner would be vacant in first half of the year 2023 on completion of tenure of the present incumbent (Ms. Amita Pandove on 06.03.2023, Sh. Neeraj Kumar Gupta on 19.04.2023 and Ms. Vanjana N. Sarna on 22.06.2023). As mentioned in para 7 above, Hon'ble Supreme Court directed to fill up vacancies, in future, without any delay; and that for this purpose, the process of filling up of a particular vacancy is initiated 1 to 2 months before the date on which the vacancy is likely to occur so that there is not much time lag between the occurrence of vacancy and filling up of the said vacancy.

10. In view of the above, approval of Hon'ble Prime Minister may be solicited on the following:-

- (i) To start process of appointment of Information Commissioners in the CIC as per past practice of publication by advertisement, shortlisting by Search Committee and Selection by Committee under Section 12(3).
- (ii) Constitution of Search Committee for shortlisting of candidates. A copy of the composition of the Search Committee for the last occasion is placed at Flag 'C'.
- (iii) To nominate one Union Cabinet Minister as member of the Committee, headed by Hon'ble PM, to be constituted under Section 12(3) of RTI Act. (During the last round of selection of CIC/IC, Sh. Amit Shah, Union Home Minister, was nominated as member of the Committee.)
- (iv) Draft advertisement inviting applications for appointment of Information Commissioners in the CIC placed below at :-
  - (a) To be published in newspapers.
  - (b) To be placed on DoPT's website.

11. Submitted please.

Pawan Kumar  
(Pawan Kumar)  
Under Secretary (IR-II)

AS (RC)

Secy (P)

MS (C/P)

5/12/2022

(Rashmi Chowdhary)  
Additional Secretary

2/12/22

06.12.22

2/12/22

PM



**PRIME MINISTER'S OFFICE**

[Human Resources Cell]

\*\*\*

South Block,  
New Delhi - 110 011

**Subject: Appointment of Information Commissioners in the Central Information Commission (CIC)**

Reference is invited to DoPT's note dated 6.12.2022 at pages 01-03/N of file No. 4/5/2021-IR II, on the subject cited above.

2. Prime Minister has approved the following proposals:-

- (i) To start process of appointment of Information Commissioners in the CIC as per past practice by publication of advertisement, shortlisting by Search Committee and Selection by Committee under Section 12(3) of RTI Act.
- (ii) Constitution of Search Committee for shortlisting of candidates for the post of Information Commissioners in the Central Information Commission with the following composition:-

|    |                                                                                             |          |
|----|---------------------------------------------------------------------------------------------|----------|
| 1. | Cabinet Secretary                                                                           | Chairman |
| 2. | Secretary (Personnel)                                                                       | Member   |
| 3. | Secretary (I&B)                                                                             | Member   |
| 4. | Secretary (DPIIT)                                                                           | Member   |
| 5. | Dr. Manoj Panda, Former RBI Chair Professor, Institute of Economic Growth, Delhi University | Member   |

- (iii) To nominate Shri Amit Shah, Union Home Minister, as member of the Committee, headed by Hon'ble Prime Minister, to be constituted under Section 12(3) of RTI Act.
- (iv) Draft advertisement inviting applications for appointment of Information Commissioners in the CIC:
  - (a) To be published in newspapers.
  - (b) To be placed on DoPT's website.

3. DoPT's file/folder [No. 4/5/2021-IR II] is returned herewith.

(Hrisheekesh Arvind Modak)

Director

Tel. No. 2301 3485

Secretary, Department of Personnel & Training

PMO ID no. 5587955/PMO/2022-IR Cell

Dated 17.12.2022

AS (RC)

21.12.22

CS/IR  
19/12

Subject: Appointment of Information Commissioners in CIC- approval of media plan of CBC (DAVP) for publication of advertisement reg.

This is regarding appointment to the post of the Information Commissioners in the Central Information Commission for which the Advertisement dated 20.12.2022 has been published on the official website of this Department. The last date of receipt of application is **12<sup>th</sup> January, 2023**.

2. This Department vide letter dated 20.12.2022 requested the Central Bureau of Communication (CBC) (DAVP) to publish the advertisement (English and Hindi) in four newspapers viz. 'The Hindustan Times' and 'Times of India' (in English); 'Dainik Bhaskar' and 'Hindustan' (in Hindi) and all their editions in India on 22.12.2022. In response, the CBC sent initially media plan for the advertisement with an estimated cost of Rs. 2,67,806/-, however the said media plan was not found covering all States & UTs of India. The matter was discussed with CBC official and it was requested to send a revised Media Plan covering all States & UTs. Accordingly, it has sent a revised media plan covering all State Capitals & UTs (wherever applicable) for Rs. 2,40,208 with request to arrange funds for publication of the advertisements as per the approved media plan.

3. The above expenditure of Rs. 2,40,208/- will be debitable to Major Head 2052-Secretariat General Services - 00.090-Secretariat (Minor Head) -05 - Ministry of Personnel, PG & Pensions, 05.01- Department of Personnel & Training, 05.01.26-Advertising and Publicity, Demand No. 73 for the year 2022-23.

4. Accordingly, the file is submitted for approval of (i) media plan as forwarded by CBC (DAVP) and (ii) sanction of the estimated amount of Rs. 2,40,208/- for the advertisements to be published.

5. Before seeking the concurrence of IFD, kind approval of AS(RC) is solicited for payment to the tune of Rs. 2,40,208 in favour of Central Bureau of Communication (CBC) (DAVP), *as per DPA please.*

Index  
21-12-2022

$$SO(\mathbb{R}^2)$$

~~US(EK4)~~

$$A \subseteq R(C)$$

Bikash

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|----|----|----|
| 21 | 12 | 22 |
|----|----|----|

21/12  
Ranjan Kumar

21/12/22

US/ER/7  
AS/RC) As proposed.  
availability of funds may be certified. AD may  
concern. Matter is urgent.

~~Dis/AD~~  
Dis/AD

~~1/21/12~~

Us

B 5A

21

Ref: Preceding note.

2. Sufficient funds are available under the Head  
'Advertisement & Publicity' for 2022-23 in Demand

NO 74.

3. Dir(A)/HOD may kindly approve the expenditure as  
stated in para 4.5 of preceding note. (under existing delegation of financial powers  
(copy enclosed))

~~Dir(A)/HOD~~

nafta  
21/11/22

Bgt  
21/11/22

~~HOD~~

US/Bgt

dt  
21/11/22  
US (IR-II)

Department of Personnel and Training  
(IR Division)

\*\*\*\*\*

**Subject:** Appointment of Information Commissioners in the Central Information Commission

**Reference Notes at pp.14-17/ante.**

2. The matter under submission relates to appointment of Information Commissioners in the Central Information Commission.

**Rule Position**

3. As per section 12 (2) of the RTI Act, the Central Information Commission shall consist of the Chief Information Commissioner and such number of Central Information Commissioners, **not exceeding ten**, as may be deemed necessary.

4. As per Section 12(5) of the RTI Act, 2005, the Information Commissioner shall be person of eminence in public life with wide knowledge and experience in "law, science and technology, social service, management, journalism, mass media or administration and governance."

5. PMO vide ID No. 5587955/PMO/2022-HR Cell dated 17.12.2022 had conveyed the approval of the Hon'ble Prime Minister to start the process of appointment of Information Commissioner in the Central Information Commission, as per past practice by publication of advertisement, shortlisting by Search Committee and Selection by Committee under Section 12(3) of the RTI Act, 2005. It has also conveyed the approval for –

(i) the constitution of Search Committee for short-listing of candidates for appointment as Information Commissioners with the following composition:-

|    |                                                                                             |          |
|----|---------------------------------------------------------------------------------------------|----------|
| a. | Cabinet Secretary                                                                           | Chairman |
| b. | Secretary (Personnel)                                                                       | Member   |
| c. | Secretary (I&B)                                                                             | Member   |
| d. | Secretary (DPIIT)                                                                           | Member   |
| e. | Dr. Manoj Panda, Former RBI Chair Professor, Institute of Economic Growth, Delhi University | Member   |

(ii) the nomination of Shri Amit Shah, Union Home Minister as a member of the Committee, headed by Hon'ble PM, to be constituted under Section 12(3) of RTI Act.

→

From the page -:

-21-

# dated 20.12.2022

6. Accordingly, an advertisement inviting particulars of interested persons for the post of Information Commissioners, not exceeding six, in the Central Information Commission was published on the website of this Department on 20.12.2022 and also in leading newspapers on 22.12.2022. The last date for receipt of applications was **12.01.2023 (5:00 PM)**.

# PP-131/Com

7. A total no. of **256** applications for the posts of Information Commissioner in the Central Information Commission have been received by the due date/time i.e. 12.01.2023 (5:00PM). Advance copy of applications received before due date have also been included. In addition to 256 applications received within time, 11 more applications have been received after the due date & time.

8. Hon'ble Supreme Court in its Judgement dated 15.02.2019 in WP No.436 of 2018: Ms Anjali Bhardwaj & others Vs. Union of India and others pertaining to filling up the vacancies in CIC, disposed of the WP, inter-alia holding that-

- i. The procedure is now adequately transparent, one cannot find fault in the process of appointment;
- ii. There has been undue delay in filling up these vacancies; and that vacancies shall be filled up, in future well in time.
- iii. The terms and conditions on which such appointments are to be made be specifically stipulated in the advertisement and put on the website as well;
- iv. The Search Committee ought to make criteria for short-listing the candidates public so that it is ensured that short-listing is done on the basis of objective and rational criteria
- v. Information Commissioners are appointed from other streams/categories as well;
- vi. Vacancies be filled up in future without any delay by initiating the process for filling up the vacancies one or two months before.

9. In MA No.1979/2019 in WP No.436/2018, Hon'ble Supreme Court in its order dated 16.12.2019 directed the UoI to comply with the directions given in para 32 of the Judgement dated 15.02.2019 in the said WP and complete the appointment process in respect of Information Commissioners in CIC within a period of three months from date of order i.e. 16.12.2019. In compliance of the directions, the appointments of Chief Information Commissioner and an Information Commissioner were completed within the deadline and notified on 06.03.2020 and a Compliance Affidavit dated 24.04.2020 was filed before the Hon'ble Court. Further, 3 more posts of Information Commissioner were filled up on 07.11.2020, as per the provisions of the RTI Act and in compliance with the judgement dated 15.02.2019 of the Hon'ble Supreme Court. In compliance of the further directions issued on 07.07.2021, the Latest Status and Compliance Affidavit dated 10.08.2021 was also filed before the Hon'ble Supreme Court. As per the Supreme Court website, the matter is pending for motion hearing.

✓ WPP 37-88  
a.

\* WPP 88-L-  
88-U  
a.

\$ PP-89-122/a

\* pp. 1/1000

10. As on date, **3 posts** of Information Commissioners in CIC are **vacant**. Further, 3 more posts of Information Commissioner would be vacant in first half of the year 2023 [1 each in **March (06.03.2023)**, **April (19.04.2023)** and **June (22.06.2023)** on completion of tenure of the present incumbent ICs.

11. In view of the above, convenience of the Cabinet Secretary as Chairman of Search Committee may be solicited to convene a meeting for short-listing of the candidates for the post of Information Commissioner in the Central Information Commission at the earliest.

*Bikesh*

(Bikesh Kr. Barnawal)

SO (IR-II)

Dated 10.02.2023

~~US (IR-II)~~

~~Dir (IR)~~

*3*  
10/2/23

*Pawan Kumar*  
10/02/2023

~~AS (AC)~~ Para 11 for consideration pl

~~Secy (CP)~~

*Liso*  
10/2/2023

(Rashmi Chowdhary)  
Additional Secretary

Cabinet Secretary

*13.2.23.*

CS-95/23  
13/2/23

F. No: 4/5/2021-IR II (Pt)

Department of Personnel and Training  
(IR Division)

\*\*\*\*\*

**Subject: Appointment of Information Commissioner in Central Information Commission- reg.**

Prime Minister's Office PMO vide ID No. 5587955/PMO/2022-HR Cell dated 17.12.2022 has conveyed the approval of the Prime Minister to initiate the process of appointment of upto six posts of Information Commissioners in the Central Information Commission as per the past practice of publication of advertisement in leading newspapers, constitution of Search Committee and nomination of Sh. Amit Shah, Union Home Minister as a member of the Selection Committee headed by the Hon'ble Prime Minister in terms of Section 12(3) of the RTI Act.

2. Accordingly, an advertisement inviting particulars of interested persons for not exceeding six Information Commissioners in the Central Information Commission was published on the website of this Department on 20.12.2022 and also in leading newspapers on 22.12.2022. The last date for receipt of applications was **12.01.2023**. A total no. of **256** applications for the posts of Information Commissioner in the Central Information Commission have been received by the due date/time i.e. 12.01.2023 (5:00PM). Advance copy of applications received before due date have also been included. In addition to 256 applications received within time, 12 more applications have been received after the due date.

3. The main file seeking convenience of Cabinet Secretary as the chairman of the Search Committee for convening meeting for shortlisting candidates for appointment to the posts of Information Commissioner in CIC is under submission to Cabinet Secretariat.

4. It is learnt that the meeting of the Search Committee is likely to be held shortly. Accordingly, Draft Agenda Note for Search Committee for shortlisting candidates for appointment to the post of Information Commissioner in CIC is submitted for consideration please.

US (IR-II)

Dir (IR)

JS (A)

Secretary - OT

Dir (IR)

US (IR-II)

Bikesh  
(Bikesh Kr. Barnawal)  
SO (IR-II)/Dated 31.10.2023

Pawan Kumar  
31/10/23

Σ  
31/10/23

SW Singh  
31/10/23

Pawan  
1/11/23  
SO (IR-2)

Σ  
31/10/23

Confidential

F. No. 08/03/2019-CS(A)  
CABINET SECRETARIAT

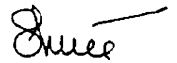
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New Delhi, Dated the 31<sup>st</sup> October, 2023

Subject: **Selection to the posts of Chief Information Commissioner and Information Commissioners in the Central Information Commission (CIC) - reg.**

A meeting of the Search Committee for selection to the posts of Chief Information Commissioner and Information Commissioners in the CIC is scheduled to be held **at 04:00 PM on 01.11.2023** in the Committee Room, Cabinet Secretariat, Rashtrapati Bhawan, New Delhi.

2. All the members of the Search Committee may please be requested to attend the meeting accordingly.
3. Further, six (06) sets of Agenda Note for the meeting [along with soft copy of the same in MS-Word] may be sent to this Secretariat and the Agenda Note may be circulated to the members of the Search Committee.



(Smita Sarangi)

Director (ACC)

Tel. No.: 23016130

E-mail: [smita.sarangi@nic.in](mailto:smita.sarangi@nic.in)

Smt. S. Radha Chauhan,  
Secretary,  
Department of Personnel & Training



-25-

**CONFIDENTIAL**

**PRIME MINISTER'S OFFICE**

\*\*\*\*\*

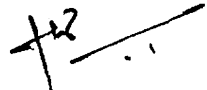
South Block,  
New Delhi – 110 011

**Subject: Meeting of the Selection Committee for appointment of Chief Information Commissioner and Information Commissioners in CIC-Regarding.**

Reference is invited to DoPT's notes on the subject cited above.

2. The undersigned is directed to convey that Prime Minister has agreed to chair the meeting of the Selection Committee for appointment to the posts of Chief Information Commissioner and Information Commissioners in Central Information Commission (CIC), on 03.11.2023 at 6:00 PM at 7 LKM, New Delhi.

3. DoPT is further requested to inform all the Hon'ble Members of the Selection Committee accordingly.

  
(Hrisheekesh Arvind Modak)  
Director  
Tel. No. 2301 3485

**Secretary, Department of Personnel & Training**

PMO ID No.: 600/52/C/05/2023-HR.

Dated 01.11.2023

- i. PS to PM
- ii. Sr. PPS to Principal Secretary to PM
- iii. PPS to JS(S)

Department of Personnel and Training  
IR Division

\*\*\*\*\*

**Subject: Appointment of Chief Information Commissioner and Information Commissioners in Central Information Commission- reg.**

This is regarding appointment of Chief Information Commissioner and Information Commissioners in Central Information Commission.

2. PMO vide its Id No.5587955/PMO/2022-HR Cell dated 17.12.2022 and Id No.5676419/PMO/2023-HR Cell dated 05.08.2023 has conveyed the approval of the Prime Minister to initiate the process of appointment of Information Commissioners and Chief Information Commissioner respectively in the Central Information Commission as per practice of publication of advertisement in leading newspapers and constitution of Search Committee.

3. Cabinet Secretariat vide their communication No. 08/03/2019-CS(A) dated 31st Oct. 2023 had communicated that the meeting of the Search Committee for appointment of Chief Information Commissioner and Information Commissioners will be held on 1st Nov. 2023 at 04:00 PM in Cabinet Secretariat, Rashtrapati Bhawan, accordingly meeting notice was issued.

4. The meeting was held by the Cabinet Secretary on 01.11.2023. The Minutes of the meeting of the Search Committee received from Cabinet Sectt may be seen at F/X.

# PP2/N  
5. PMO vide its ID No.600/52/C/05/2023-HR dated 01.11.2023 conveyed that the meeting of the Selection Committee will be held on 3rd Nov. 2023 at 06:00 PM at 7 Lok Kalyan Marg, New Delhi. Accordingly meeting notice is placed below for approval please. The Agenda note for the Selection Committee meeting in r/o Chief Information Commissioner and Information Commissioners is also placed below for approval please

Submitted please.

US (IR-II)

Dr. (IR)

JS (A)

Secretary (P)

Bikesh  
(Bikesh Kr. Barnawal)

SO (IR-II)/dated 01.11.2023

Pawan Kumar  
01/11/2023

SO Barnawal  
01/11/23  
1/11/2023

2ms  
01.11.23

Government of India  
Ministry of Personnel, Public Grievances and Pensions  
(Department of Personnel & Training)

Subject: Appointment of Information Commissioners in Central Information Commission.

This proposal is regarding appointment of 4 Information Commissioners (ICs) in the Central Information Commission against existing vacancies.

2. In exercise of the powers conferred by Section 12(1) of Right to Information Act, 2005, the Central Government has constituted the Central Information Commission. As per Section 12(2) of the Act, the Commission shall consist of the Chief Information Commissioner and such number of Central Information Commissioners not exceeding ten, as may be deemed necessary.

3. As per Section 12(5) of the RTI Act, 2005, the CIC and ICs shall be persons of eminence in public life, with wide knowledge and experience in "law, science and technology, social service, management, journalism, mass media or administration and governance".

4. According to Section 12(3) of the Act, the CIC and the ICs shall be appointed by the President on the recommendation of the Committee consisting of:

- (i) The Prime Minister who shall be the Chairperson of the Committee;
- (ii) the Leader of the Opposition in the Lok Sabha; and
- (iii) A Union Cabinet Minister to be nominated by the Prime Minister.

And where the Leader of opposition in the House of the People has not been recognised as such, the leader of the single largest group in opposition of the Government in the House of the People shall be deemed to be the Leader of Opposition.

5. As per Section 13(2) of the Right to Information Act, 2005, every Information Commissioner shall hold office for such term as may be prescribed by the Central Government or till he attains the age of sixty five years, whichever is earlier, and shall not be eligible for reappointment as Information Commissioner. Further provided that every Information Commissioner shall, on vacating his office under this sub-section be eligible for appointment as the Chief Information Commissioner in the manner specified in sub-section (3) of section 12.

6. As per Section 27 (1), "the appropriate Government may, by notification in the Official Gazette, make rules to carry out the provisions of this Act. Accordingly, The Right to Information (Terms of Office, Salaries, Allowances and other Terms and Conditions of Service of Chief Information Commissioner, Information Commissioners in the Central Information Commission, State Chief Information Commissioner and State Information Commissioners in the State

C-1157264/CA(I)/2023

Information Commission) Rules, 2019 have been framed and published in the Gazette vide Notification dated 24<sup>th</sup> October, 2019.

7. As per these Rules, the Information Commissioner shall hold office for a period of three years from the date on which he enters upon his office. The other terms and conditions of appointment have also been laid out in these Rules.

8. Anticipating that by first half of the year 2023, six posts of Information Commissioner would be vacant in the Central Information Commission and may be required to be filled up, a proposal to fill up the vacancies was initiated by Department of Personnel & Training. The approval of Hon'ble Prime Minister was obtained for initiating the process of selection of suitable persons for the posts of IC and for the constitution of Search Committee.

9. Accordingly, the Committee as per Section 12(3) of the RTI Act, 2005, was constituted with the Prime Minister as Chairperson; and Shri Amit Shah, Union Home Minister and Shri Adhir Ranjan Chowdhury, Leader of the single largest Group in Opposition of the Government in the Lok Sabha, as Members.

10. The Prime Minister on 17.12.2022 had approved constitution of a Search Committee for the present round of selection process (page 17/Note), as given below:-

|      |                                                                                                   |          |
|------|---------------------------------------------------------------------------------------------------|----------|
| i.   | Cabinet Secretary                                                                                 | Chairman |
| ii.  | Secretary (Personnel)                                                                             | Member   |
| iii. | Secretary (I&B)                                                                                   | Member   |
| iv.  | Secretary (DPIIT)                                                                                 | Member   |
| v.   | Dr. Manoj Panda, Former RBI Chair<br>Professor, Institute of Economic Growth,<br>Delhi University | Member   |

11. An advertisement inviting particulars of interested persons for upto six posts of IC in the Central Information Commission was published on the website of this Department on 20.12.2022 and also in the leading newspapers, on 22.12.2022, through the Central Bureau of Communications (CBC). The last date for receipt of applications was 12.01.2023. A total of 256 applications had been received till the last date of receipt of applications (list is at pp.172-217/corr.).

12. The Search Committee met under the Chairmanship of Cabinet Secretary on 01.11.2023 to shortlist the candidates for the posts of ICs in the Central Information Commission. Minutes of the Search Committee are placed hereunder (pages 278-279/corr).

13. The meeting of the Committee constituted under Section 12(3) of the Right to Information Act, was held at 6:00 PM on 03.11.2023 under the chairmanship of the Hon'ble Prime Minister. Agenda note of the meeting is also placed hereunder (pages 284-286/cor).

14. The Committee was apprised that as per Section 12(2) of the Right to Information Act, 2005, the Central Information Commission shall consist of the CIC and such number of ICs, not exceeding ten, as may be deemed necessary. At present, there are four incumbent ICs in the Central Information Commission and one of the incumbent IC would be completing his tenure on 04.11.2023 and three of the incumbent ICs would be completing their tenure on 06.11.2023.

15. The Committee perused the Agenda note, including the details of the applicants along with their profile. In addition to the candidates shortlisted by the Search Committee headed by Cabinet Secretary, the Committee considered all eligible applicants who had applied in response to advertisement issued on 20.12.2022 for the post of IC in the Central Information Commission.

16. After due consideration, the Committee has recommended

(1) Ms. Anandi Ramalingam, Former Chairman and Managing Director, Bharat Electronics Limited, and

(2) Shri Vinod Kumar Tiwari, IFoS (HP:1986), (Retd.), Former Principal Chief Conservator of Forests-cum-Head of Forest Force, Government of Himachal Pradesh.

for appointment as Information Commissioners in the Central Information Commission. Minutes of the meeting dated 03.11.2023 are also placed (pages 317-319/corr.). The profile of Ms. Anandi Ramalingam and Shri Vinod Kumar Tiwari are also placed at pp.207/corr & pp.175/corr respectively.

17. Ms. Anandi Ramalingam and Shri Vinod Kumar Tiwari will be eligible to be appointed as Information Commissioner for a period of three years from the date they enter office. Further, the salaries and other conditions of service will be as per the Right to Information (Terms of Office, Salaries, Allowances and other Terms and Conditions of Service of Chief Information Commissioner, Information Commissioners in the Central Information Commission, State Chief Information Commissioner and State Information Commissioners in the State Information Commission) Rules, 2019.

18. On receipt of approval of the Hon'ble President of India, a letter of offer stating the terms of office and other conditions of service will be made to Ms. Anandi Ramalingam and Shri Vinod Kumar Tiwari. A draft of the offer of appointment is at Flag 'X'.

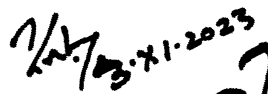
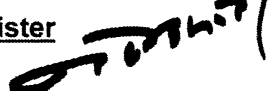
19. On acceptance of the offer of appointment by Ms. Anandi Ramalingam and Shri Vinod Kumar Tiwari, the convenience of the Hon'ble President of India will be sought for administering an oath or affirmation according to the form set out for the purpose in the first schedule as per Section 13 (3) of the Right to Information Act, 2005. Once the oath of affirmation is administered, the appointment will be notified in the Gazette of India as per draft at Flag 'Y'.

20. In view of the foregoing, the Prime Minister may like to recommend to the Hon'ble President of India, to appoint Ms. Anandi Ramalingam and Shri Vinod Kumar Tiwari as Information Commissioners in the Central Information

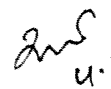
Commission as per Section 12(3) of the Right to Information Act for a period of three years from the date they enter office.

(ii) The terms and conditions of appointment of the Information Commissioner will be as contained in The Right to Information (Terms of Office, Salaries, Allowances and other Terms and Conditions of Service of Chief Information Commissioner, Information Commissioners in the Central Information Commission, State Chief Information Commissioner and State Information Commissioners in the State Information Commission) Rules, 2019.

  
(S. Radha Chauhan)  
Secretary (P)  
03.11.2023

MOS (PP)   
Prime Minister   
President of India  
  
4.11.23

Minister of State (PP) [Dr. Jitendra Singh]  
President's Secretariat, I D No. 53(3)-CA(I)/2023 dated 04.11.2023

Secretary (P)   
4.11.23  
JS (admn)  
On 4/11/23  
Dir (IR)  
US (IR)

Department of Personnel & Training  
IR Division

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**Subject: Appointment of Information Commissioners in the Central Information Commission.**

Reference approval of the Hon'ble President for appointment of Smt. Anandi Ramalingam and Shri Vinod Kumar Tiwari as the new Information Commissioner in CIC may be seen at p.30/N.

2. In pursuance of the above approval, Offers of Appointment were made to Smt. Anandi Ramalingam and Shri Vinod Kumar Tiwari vide letters dated 04.11.2023 (pp.321-322/corr) to which they accepted vide Acceptance letters dated 04.11.2023 (pp.323-324/corr). Subsequently, President Secretariat was requested (pp.325/corr) to indicate date and time at which the Hon'ble President would administer Oath to the newly appointed ICs.

3. In response, President Sectt vide its Letter dated 04.11.2023 (pp.331/corr) informed that the Hon'ble President has desired that Smt. Anandi Ramalingam and Shri Vinod Kumar Tiwari may make and subscribe the Oath before the Chief Information Commissioner under Section 13(3) of the RTI Act.

4. The above appointments of Smt. Anandi Ramalingam and Shri Vinod Kumar Tiwari as the Information Commissioner have to be published in Part-II Section 3, sub-section (ii) of the Gazette of India, Extraordinary. Accordingly, draft notifications both in Hindi and English are placed at Flag 'A' and Flag 'B' for approval and signature please. We may request the Manager, Government of India Press, Mayapuri to publish the Appointment Notification on 6<sup>th</sup> November, 2023 after 1600 hrs as per Flag 'C'.

US (IR-II)

Dr (IR) - O.L

JS (IR)

Secretary (P)

JS (IR)

JS (IR)

JS (IR 2)

(Bikesh Kr. Barnawal)

SO (IR-II)/Dated 06.11.2023

Pawan Kumar  
06/11/2023

JS (IR)  
6/11/23

JS (IR)  
06.11.23